



CHAPTER 60.

An Act to amend the Superannuation Acts ; and to make further provision as to persons employed in the civil service of the State whose superannuation benefits are regulated under the enactments relating to teachers or to officers and servants of local authorities, or under certain approved schemes. [26th July 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where, during the period beginning with the third day of September, nineteen hundred and thirty-nine, and ending with such date as the Treasury may by order appoint, a person has entered the civil service of the State after whole-time service during that period in the armed forces of the Crown, in the merchant navy or the mercantile marine, or in any of the women's services specified in the First Schedule to this Act, then for the purposes of section four of the Superannuation Act, 1887, or section three of the Superannuation Act, 1914 (which relate to gratuities on retirement or death), or section three of the Superannuation Act, 1935 (which enables persons who become civil servants to reckon for superannuation purposes previous service in an unestablished capacity) any such whole-time service as aforesaid served by that person after he had attained the age at which, in the opinion of the Treasury, he might but for war circumstances have been appointed to the civil service of the State in the class

Counting of
certain war
service for
superannua-
tion purposes.

50 & 51 Vict.
c. 67.
4 & 5 Geo. 5.
c. 86.
25 & 26 Geo. 5.
c. 23.

in which he was in fact appointed shall, subject to any regulations made under this section, be treated as if it had been continuous service in an unestablished capacity ending immediately before the date on which the said person entered the civil service of the State.

(2) The Treasury may make regulations—

(a) for securing that service shall not be reckoned for the purposes of the last foregoing subsection if it is reckoned for the purposes of the grant of naval, military or air force non-effective pay, including gratuities other than war gratuities to which section twenty-three of the Finance (No. 2) Act, 1945 (which exempts war gratuities from income tax) applies ;

9 & 10 Geo. 5.
c. 13.

(b) for excluding from the operation of the last foregoing subsection any period in respect of which the person in question was in receipt of such non-effective pay as aforesaid, or in respect of which he was in receipt of remuneration in excess of the full normal remuneration of his post in consideration of the service in respect of which the excess remuneration was payable not being reckoned for increase of any such non-effective pay,

so however that the regulations shall not prevent any service from counting for the purposes of so much of section four of the Superannuation Act, 1887, as requires a minimum period of service as a condition for the grant of a gratuity.

Superannuation of late entrants to civil service.

2.—(1) If with respect to any person becoming a civil servant after attaining the age of forty years the Treasury have directed that he shall be subject to the provisions of this subsection, then for the purposes of the Superannuation Acts the length of his service shall be treated as eight-fifths of the actual length thereof.

(2) If with respect to any person becoming a civil servant between the ages of thirty-five and forty years the Treasury have directed that he shall be subject to the provisions of the last foregoing subsection, the provisions of the last foregoing subsection shall apply in his case accordingly, but his service before attaining the age of forty years shall be disregarded for the purposes of the Superannuation Acts :

Provided that notwithstanding the direction, this subsection shall not have effect so as to prevent or reduce any award under the said Acts which might have been made if the direction had not been given.

(3) No direction shall be given under this section in the case of a person who became a civil servant before the thirteenth day of May, nineteen hundred and forty-six, and no such direction shall be given in the case of any person after the expiration of six months from the date on which he became a civil servant, or from the commencement of this Act, whichever is the later.

(4) Any direction under this section shall be laid before each House of Parliament forthwith after it has been given.

3. The Superannuation Acts shall be amended in manner provided by the Second Schedule to this Act.

Minor
amendments
of Superannu-
ation Acts.

4.—(1) For the purpose of adapting the Superannuation Acts to the circumstances of persons whose employment in the civil service of the State (in this subsection referred to as "usual employment") has been interrupted or terminated by war circumstances, so as to authorise the making, whether before or after the commencement of this Act, of awards which, or the amount of which, would not be authorised under the said Acts apart from this section, the Treasury may make regulations providing, in the case of persons of any class to which the regulations apply,—

Modifications
of Superannu-
ation Acts
to meet war
circumstances.

- (a) for reckoning time during the war period during which such a person has been absent from his usual employment in order to engage in other employment recognised by the Treasury as being of national importance as if he had spent the time in his usual employment at the remuneration which he would have been receiving if he had not left that employment ;
- (b) for securing that, in the case of a person who during the war period was absent from his usual employment in order to serve in the armed forces of the Crown or to be employed in other work recognised by the Treasury as being of national importance, and while so serving or employed died or became by reason of infirmity of mind or body permanently incapacitated for the duties of his usual employment, the Superannuation Act, 1887 and section three of the Superannuation Act, 1914 (which provide for gratuities in the case of persons not entitled to superannuation allowance who die while employed or are removed in consequence of the abolition of their employment or by reason of incapacity) shall apply as if at the time when he became absent from his usual employment he had been removed therefrom in consequence of the abolition thereof ;
- (c) in the case of a person who, having entered on his usual employment after having served on a regular engagement in the armed forces of the Crown, left his usual employment to enter on further service in those forces, and was

subsequently reinstated in his usual employment, for reckoning such further service, or any subsequent employment in the civil service of the State before he was reinstated, for the purposes of the Superannuation Acts in such manner as may be specified in the regulations ;

- (d) in the case of a person who, not being a person falling within the last foregoing paragraph, left his usual employment on or after the third day of September, nineteen hundred and thirty-nine, without the consent of the head officer in the department in which he was employed, to enter on service in the armed forces of the Crown or on other work recognised by the Treasury as being of national importance, and was subsequently reinstated in his usual employment, for reckoning as aforesaid such service or work, or any subsequent employment in the civil service of the State before he was reinstated ;
- (e) in the case of a person who on or after the said date left his usual employment through having for reasons of conscience refused to enter on service in the armed forces of the Crown or to continue in his usual employment, but later entered on such service or returned to employment in the civil service of the State, and was subsequently reinstated in his usual employment, for reckoning as aforesaid such service or employment before he was reinstated ;
- (f) for applying section one of the Superannuation Act, 1887 (which provides in the case of death or injury arising from service for awards in accordance with the terms of a Treasury warrant) and any warrant made thereunder to persons who died or were injured while in territory occupied by an enemy, or whose death or injury is attributable to circumstances arising while they were in such territory.

(2) Regulations of the Treasury under this Act may make provision, in substitution for the provisions of section four of the Superannuation Act, 1887, authorising the payment, whether before or after the commencement of this Act, to persons employed in the Control Service for Germany and Austria, being persons employed in any such capacity as is mentioned in the said section four, or to any class of such persons, of gratuities on the termination of their employment.

(3) In this section the expression " war period " means the period beginning with the third day of September, nineteen hundred and thirty-nine, and ending with such date as the Treasury may by order appoint.

5.—(1) Where, whether before or after the commencement of this Act,—

- (a) a person employed in the civil service of the State has, with the approval of the Treasury, become subject to a superannuation scheme to which this section applies ; or
- (b) a person subject to such a scheme is employed in the civil service of the State and, with the approval of the Treasury, remains subject to the scheme,

the Minister or other person in charge of the department in which that person is employed shall have power, and be deemed always to have had power, but (except where that department is the Treasury) subject to the approval of the Treasury,—

- (i) to pay the contributions authorised or required by the scheme to be paid by that person's employer,
- (ii) to refund the amount of any payments made, whether by that person or by a former employer of his, in respect of any period during which that person was employed in the civil service of the State, being payments falling to be borne by the employer in respect of premiums payable under any policy of insurance issued in pursuance of the scheme or in respect of sums to be invested in pursuance thereof.

(2) Any period, whether before or after the commencement of this Act, in respect of which payments authorised by the last foregoing subsection have been made in the case of any person employed in the civil service of the State, whether before or after he became so employed, shall notwithstanding anything in the Superannuation Acts be disregarded in the application to him of any provisions of those Acts except section one of the Superannuation Act, 1887 (which provides for awards in the case of death or injury arising from service).

(3) The Treasury may make regulations for conferring on persons employed in the civil service of the State who are subject to any scheme to which this section applies, or any class of such persons, benefits appearing to the Treasury to correspond as nearly as may be with the benefits conferred, on persons whose superannuation benefits are regulated under the Superannuation Acts, by sections one and four of this Act, by section three of the Superannuation Act, 1935, and by sections one and two of the Pensions (Increase) Act, 1944.

7 & 8 Geo. 6.
c. 21.

(4) The schemes to which this section applies are the superannuation schemes operated under the Federated Superannuation System for Universities, the Federated Superannuation Scheme for Nurses and Hospital Officers, and any other scheme approved by the Treasury for the purposes of this section.

Amendments
as to
superannu-
ation for
former
teachers
employed in
civil service.
15 & 16 Geo. 5.
c. 59.

6.—(1) Service, whether before or after the commencement of this Act, as a civil servant in a capacity approved by the Treasury for the purposes of this subsection shall be treated as approved external service falling within paragraph (b) of subsection (1) of section thirteen of the Teachers (Superannuation) Act, 1925 (which provides for reckoning a teacher's approved external service for superannuation purposes)—

- (a) notwithstanding that the service does not satisfy the condition specified in the said paragraph (b) that it must be in a capacity in which teaching experience is of value or was of value at the date of the teacher's appointment therein;
- (b) notwithstanding that the teacher does not satisfy the Minister of Education as to the length of his previous engagement as a teacher, as required by the said paragraph (b),

so however that service which is so treated by virtue only of this subsection shall be disregarded for the purposes of the provisions of Part II of the said Act with respect to the calculation of the average salary of a teacher.

(2) For the purpose of determining whether a civil servant has served for the minimum period prescribed under the Superannuation Acts for the payment of a superannuation allowance or additional allowance, or a gratuity to his personal representatives on his death, any service, whether before or after the commencement of this Act, before he became a civil servant which is—

- (a) recognised service or contributory service for the purposes of the Teachers Superannuation Acts, 1918 to 1945, or
- (b) service which is recorded under the scheme framed and approved under the Education (Scotland) (Superannuation) Acts, 1919 to 1939, and any Act amending the same (hereinafter referred to as "the Scottish Teachers Scheme"), or
- (c) service (not falling within the foregoing paragraphs) approved by the Treasury for the purposes of this section, being—
 - (i) service which may be treated for any of the purposes of the Teachers Superannuation Acts, 1918 to 1945, as recognised or contributory service, or
 - (ii) employment which may be treated as service for the purpose of determining whether a teacher has completed a definite period of service prescribed as a condition of obtaining a retiring allowance or a gratuity under the Scottish Teachers Scheme,

shall be treated as if it were service as a civil servant :

Provided that any service which under subsection (2) of section twelve of the Teachers (Superannuation) Act, 1925, or under subsection (2) of Article 14 of the Scottish Teachers Scheme, would, by reason of the repayment of contributions, be excluded in reckoning periods of contributory or recognised service for the purposes of Part II of the said Act of 1925, or be cancelled in the record of service maintained under the Scottish Teachers Scheme, as the case may be, shall be disregarded for the purposes of this subsection.

(3) In relation to a civil servant who has served less than ten years' actual service as such, but by virtue of this section has served for the minimum period prescribed under the Superannuation Acts for the payment of a superannuation allowance, section two of the Superannuation Act, 1859, shall have effect as if it provided that the superannuation allowance for civil servants who have completed any number of years' service less than ten should be one eightieth of the average salary and emoluments mentioned in the said section for each complete year of service. 22 Vict. c. 26.

(4) Nothing in the foregoing provisions of this section shall render any allowance or gratuity payable in respect of any period before the commencement of this Act.

7.—(1) Any regulations under this Act shall be laid before Parliament forthwith after they have been made, and if either House of Parliament, within the period of forty days beginning with the day on which any such regulations as aforesaid are laid before it, resolves that the regulations be annulled, they shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of new regulations. Provisions as to regulations.

(2) In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(3) Notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, regulations made under this Act shall not be deemed to be, or to contain, statutory rules to which that section applies. 56 & 57 Vict. c. 66.

8. There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums which under the Superannuation Acts, 1834 to 1943, or the enactments relating to the superannuation of teachers are payable out of moneys so provided, and any expenses incurred under section five of this Act. Expenses.

Interpretation. 9.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say—

“ the Superannuation Acts ” means the Superannuation Acts, 1834 to 1943 and this Act ;

“ unestablished capacity ” has the same meaning as in section three of the Superannuation Act, 1935, that is to say, employment in the civil service of the State otherwise than in the capacity of a civil servant as defined by the Superannuation Act, 1887, being employment to which the person serving therein is required to devote his whole time, and the remuneration for which is paid entirely out of moneys provided by Parliament.

(2) References in this Act to any enactment shall, unless the context otherwise requires, be construed as references to that enactment as amended by or under any subsequent enactment, including an enactment contained in this Act.

**Short title,
construction
and citation.**

10.—(1) This Act may be cited as the Superannuation Act, 1946, and except subsection (1) of section six thereof shall be construed as one with the Superannuation Acts, 1834 to 1943, and those Acts and this Act, except as aforesaid, may be cited together as the Superannuation Acts 1834 to 1946.

(2) Subsection (1) of section six of this Act may be cited as the Teachers (Superannuation) Act, 1946, and shall be construed as one with the Teachers (Superannuation) Act, 1925, and the Teachers (Superannuation) Acts, 1918 to 1945 and the said subsection (1) may be cited together as the Teachers (Superannuation) Acts, 1918 to 1946.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

WOMEN'S SERVICES.

1. Member of Queen Alexandra's Royal Naval Nursing Service or any reserve thereof.
2. Member of the Women's Royal Naval Service.
3. Woman medical or dental practitioner serving in the Royal Navy or any naval reserve.
4. Member of Queen Alexandra's Imperial Military Nursing Service or any reserve thereof.
5. Member of the Territorial Army Nursing Service or any reserve thereof.
6. Member of the Auxiliary Territorial Service.
7. Woman employed with the Royal Army Medical Corps or the Army Dental Corps with relative rank as an officer.
8. Member of Princess Mary's Royal Air Force Nursing Service or any reserve thereof.
9. Member of the Women's Auxiliary Air Force.
10. Women employed with the Medical Branch or the Dental Branch of the Royal Air Force with relative rank as an officer.
11. Member of the Voluntary Aid Detachments employed under the Admiralty, Army Council or Air Council.

SECOND SCHEDULE.

Section 2.

MINOR AMENDMENTS OF THE SUPERANNUATION ACTS.

1. Rules made by the Treasury under section seven of the Superannuation Act, 1909 for altering the rules made by them under section one of the Superannuation Act, 1892 (which relate to the reckoning of service in two or more public offices) may make provision for enabling any person who has served in two or more public offices to be treated as having served continuously and successively in those offices notwithstanding any intervals between his service in such offices during which he has been transferred to approved employment.

9 Edw. 7. c. 10.
55 & 56 Vict.
c. 40.

2.—(1) Section four of the Superannuation Act, 1914, and section eight of the Superannuation Act, 1935 (which provide for superannuation benefits for a civil servant who with the consent of the head of his Department is transferred from the civil service to approved employment) shall subject to the adaptations set out in the next following sub-paragraph apply to a civil servant who, after being transferred as aforesaid, is with the consent of the Treasury transferred

2ND SCH.
—cont.

to one or more subsequent employments recognised by the Treasury as being employments to which it is expedient that the provisions of the said section four should apply.

(2) The said adaptations are as follows :—

(a) in the said sections four and eight, references to retirement from the approved employment shall be construed as references to retirement from the latest employment recognised as aforesaid, and references to the transfer shall be construed as references to the transfer from employment as a civil servant ;

(b) in the said section eight, references to dying while in the approved employment, and to a system of superannuation applicable to the approved employment, shall be construed respectively as references to dying while in the latest employment recognised as aforesaid and to a system of superannuation applicable to that employment.

3.—(1) Subject to the provisions of this paragraph, subsection (1) of section three of the Superannuation Act, 1935 (which provides, in the case of persons entering on service in an unestablished capacity after the commencement of that Act, and subsequently becoming civil servants, that their service in an unestablished capacity shall, as to one half of the period thereof, be reckoned for the purposes of the Superannuation Acts as service as a civil servant) shall extend to persons of such descriptions as may be specified in that behalf by regulations made by the Treasury under this Act notwithstanding that they entered on service in an unestablished capacity before the commencement of the said Act of 1935, so however that no service before the first day of January, nineteen hundred and nineteen shall be reckoned under the said subsection (1).

(2) The Treasury may make regulations for securing that where, in any case to which the regulations apply, it appears to the Treasury that the provisions of the said section three, either as originally enacted or as extended by sub-paragraph (1) of this paragraph, would have been applicable in the case of any person but for the fact that he was refused appointment as a civil servant on the ground that by reason of his age he would not if appointed a civil servant have become eligible to receive a superannuation allowance on retirement at the retiring age, the said person may be treated as having been eligible for such superannuation benefits as appear to the Treasury to be equitable having regard to the benefits for which he would have been eligible if he had been appointed a civil servant at the time when he was refused such appointment.

(3) Payments by way of superannuation allowance shall not be made by virtue of the foregoing provisions of this paragraph in respect of any period before the first day of April, nineteen hundred and forty-six ; but save as aforesaid, and subject to the provisions of regulations of the Treasury under this paragraph, the foregoing provisions of this paragraph shall apply in the case of persons retiring or dying as well before as after the commencement of this Act and any payment under the Superannuation Acts made before the commencement of this Act shall be adjusted accordingly.

(4) Regulations of the Treasury under this paragraph may provide for determining the persons to whom, and the cases in which, payments

shall be made by virtue of the foregoing provisions of this paragraph where the person to whom they would otherwise be payable has died or cannot be found, and for dispensing with the production of probate or other proof of the title of the person to whom payment is to be made.

4. Subsection (2) of section three of the Superannuation Act, 1935, shall have effect, and shall be deemed always to have had effect, as if for paragraph (c) thereof there were substituted the following paragraph—

“(c) that, subject as aforesaid, a person admitted into the civil service with a certificate from the Civil Service Commissioners shall, if before the certificate was issued he was for any period serving the State in an unestablished capacity, be treated for the purpose of the preceding subsection as having become a civil servant at such date after the beginning of that period and before the certificate was issued as the Treasury may determine (not being a date earlier than that on which the Treasury had decided to recognise the post in which he was serving as an established post), and that any service of his in an unestablished capacity after the date determined shall be reckoned for the purposes of the Superannuation Acts as service in the capacity of a civil servant”.

5. Where a married woman who before her marriage was employed as a civil servant has in consequence of her marriage been transferred to employment in a capacity in respect of which a superannuation allowance cannot be granted under the Superannuation Acts, and no gratuity was paid to her on her marriage in respect of her service as a civil servant, then for the purposes of section four of the Superannuation Act, 1887 (which provides for gratuities on the retirement of persons not entitled to superannuation allowances) her said service shall be treated as if it were service in the capacity to which she was transferred as aforesaid.

6. Section nine of the Superannuation Act, 1935 (which relates to the superannuation of persons transferring between local authority service and the Civil Service) shall have effect and shall be deemed always to have had effect as if in paragraph (b) of subsection (2) thereof for the words “on retirement from the civil service of the State” there were substituted the words “if he retires from the civil service of the State, or from any other public office (as defined by section four of the Superannuation Act, 1892) or from employment recognised by the Treasury as being employment to which it is expedient that the provisions of section four of the Superannuation Act, 1914, should apply”.

7.—(1) The said section nine of the Superannuation Act, 1935, shall have effect and shall be deemed always to have had effect as if the expression “local authority” therein—

(a) meant any authority which is, or is treated as, an employing authority or a Local Act authority for the purposes of the Local Government Superannuation Act, 1937, or the Local Government Superannuation (Scotland) Act, 1937, whether by virtue of the provisions thereof or by virtue of, or of any instrument having effect under, any other enactment, and

1 Edw. 8 &
1 Geo. 6. c. 68.
1 Edw. 8 &
1 Geo. 6. c. 69.

2ND SCH.
—cont.

(b) included any authority appearing to the Treasury to correspond, for the purposes of provisions relating to superannuation of any local Act, with a local authority as defined by the foregoing provisions of this paragraph ;

and accordingly the said section nine shall be amended, as from the coming into operation thereof, by the substitution, for the words in paragraph (a) of subsection (6) thereof from " means " to the end of the paragraph, of the words " shall be construed in accordance with the provisions of paragraph 7 of the Second Schedule to the Superannuation Act, 1946," and by the omission of subsection (7) thereof.

(2) Any person who under section twenty of the Local Government Superannuation Act, 1937 (which relates to clerks and assistant clerks to justices) is deemed for the purposes of that Act to be a contributory employee of a local authority shall be deemed to be such an employee for the purposes also of the said section nine of the Superannuation Act, 1935.

(3) Where under any enactment relating to the superannuation of officers or servants of an authority (in this sub-paragraph referred to as the " employing authority "), or any class of such officers or servants, the fund out of which superannuation benefits are payable is administered by an authority other than the employing authority, references in paragraph (b) of subsection (2), paragraph (b) of subsection (3) and paragraph (b) of subsection (6) of the said section nine of the Superannuation Act, 1935, to the receipt from the authority of payments or allowances shall have effect, and be deemed always to have had effect, as if they were references to the authority by whom the fund is administered.

(4) In this paragraph the expression " authority " includes any person or body of persons.

8.—(1) The rules made by the Treasury under the said section nine may be amended in accordance with the provisions of the two last foregoing paragraphs by rules made by the Treasury under this paragraph with effect from such date after the commencement of the said Act of 1935 as may be provided by the amending rules.

(2) Section sixteen of the said Act of 1935 (which requires rules under the said section nine to be laid before Parliament) shall apply to rules made under this paragraph.

(3) The said section nine, and the rules made thereunder, as amended as aforesaid shall apply in relation to persons subject to any scheme to which section five of this Act applies, but subject to such modifications as may be prescribed by regulations made by the Treasury under this Act.

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